Amendment of notification issued under section 5A of Central Excise Act, retrospectively.

113. (1) The notification of the Government of India in the Ministry of Finance (Department of Revenue) number G.S.R.794(E), dated the 30th June, 2017 issued under sub-section (1) of section 5A of the Central Excise Act, 1944 (1 of 1944) shall stand amended in the manner specified in column (3) of the Sixth Schedule and shall be deemed to have been amended retrospectively on and from the corresponding date specified in column (4) of that Schedule against the notification number to be amended as specified in column (2) of that Schedule.

(2) Notwithstanding anything contained in any judgment, decree or order of any court, tribunal or other authority, any action taken or anything done or purported to have been taken or done, at any time during the period commencing on and from the 1st day of July, 2017, relating to the provisions as amended by sub-section (1), shall be deemed to be, and deemed always to have been, for all purposes, as validly and effectively taken or done as if the amendment made by sub-section (1) had been in force at all material times.

(3) Notwithstanding the repeal of the Chapter VII of the Finance Act, 2010 (14 of 2010) as amended by the Finance Act, 2016 (28 of 2016), for the purposes of sub-section (1), the Central Government shall have and shall be deemed to have the power to amend the notification referred to in sub-section (1) with retrospective effect as if the Central Government had the power to amend the said notification under section 5A of the Central Excise Act, 1944 (1 of 1944), retrospectively, at all material times.

Explanation.— For the removal of doubts, it is hereby declared that no act or omission on the part of any person shall be punishable as an offence which would not have been so punishable had this section not come into force.

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT